

PERFORMANCE WORK STATEMENT (PWS)

Disposal of Waste Food & Bio Waste within Baumholder Military Community 31 March 2026

Part 1

1. General: This is a non-personal service(s) contract under which the personnel rendering the service(s) are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees.

1.1 Description of Services/Introduction: This is a non-personal services contract to provide for the disposal of bio waste for the Baumholder Military Community, USAG Rheinland-Pfalz. The Government will not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.2 Background: According to the rules given by Recycling Management and Waste Laws, including the Bio- Waste Ordinance, organic waste disposal must be performed by a licensed contractor.

1.3 Scope: The Contractor shall provide non-personal services, perform all work and assume responsibility for planning, programming, administering, managing, and executing all functions necessary to provide the services specified in this PWS. The Contractor shall conduct work in accordance with this PWS and all applicable United States (U.S.), German, and municipal laws, regulations, standards, provisions, and directives to include applicable publications. The Contractor shall ensure that all work meets the level of service, performance standards, or tolerances specified in the PWS. The Contractor shall assume total responsibility for all requirements stated herein on the commencement date of the performance period. The Contractor shall perform as specified in this Contract and under the direction of the Contracting Officer (KO).

1.4 Objectives: Disposal of waste food and bio waste within the timeframes established in this PWS to ensure conformance with all applicable Host Nation Laws.

1.5 General Information

1.5.1 Quality Control Plan (QCP): The Contractor shall develop and maintain a QCP to ensure services are performed in accordance with (IAW) this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's QCP is the means by which it assures that the work provided complies with the requirements of the contract.

The Contractor's Proposed QCP shall be submitted to the Contracting Officer (KO) through the Contracting Officer's Representative (COR) for review within ten (10) days after date of contract award (A.001).

The Government will review and either notify the Contractor in writing of acceptance of the plan or return their comments to the Contractor within ten (10) days. If the Government has provided comments, the Contractor shall then have five (5) days to submit a Final QCP. After receipt of the Final QCP, the Contractor may receive the Contracting Officer's acceptance in writing. Any proposed changes to the accepted QCP are required to be resubmitted for acceptance by the Contracting Officer no later than thirty (30) days prior to the anticipated change and before implementation by the Contractor. The timeline noted above will apply for review and acceptance for proposed changes. At a minimum, the QCP must include and answer the following to be acceptable:

- a. A chart showing the organizational structure and lines of authority, the names, qualifications, duties, responsibilities, and classification of each member of the Contractor's Quality Control Team.
- b. How will the Contractor monitor work to ensure that performance complies with all deliverables (etc. timelines, deadlines, and goals)?
- c. How will the Contractor monitor work to ensure that performance complies with all specifications and requirements of the contract, including clauses?
- d. How will the Contractor monitor and ensure staff qualifications remain current and valid including DOCPER processes/approvals throughout contract performance?

- e. How will the Contractor ensure all keys issued will remain controlled items (Paragraph 1.7 Key Control)?
- f. How will the Contractor inventory and track maintenance of all Government Provided Equipment / Materials?
- g. How will the Contractor identify, investigate, and correct any non-conforming performance and prevent similar deficiencies in the future?
- h. How will the Contractor file and save all Quality Control related documents for the life of the contract plus 5 years?

1.5.1.2 The Contractor shall inform the COR of issues or potential issues that might affect the performance within one (1) day of identifying those issues. Verbal reports shall be followed up by written reports within two (2) days. (A.001).

1.5.2 Quality Assurance: The Government will evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure that the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the acceptable quality levels (performance thresholds).

1.5.3 Recognized Holidays: The following provides information on recognized holidays for the purpose of the PWS. If submittal of any documentation (e.g. deliverables, submittals, etc.) deadlines fall on a holiday, the closest work day prior to the holiday will apply as the deadline for submittal.

1.5.3.1 U.S. Holidays: Work shall not be performed on U.S. holidays occurring during the normal workweek unless otherwise directed by the Contracting Officer. When a U.S holiday occurs on a Saturday or a Sunday, the holiday is observed on the preceding Friday or following Monday, respectively.

New Year's Day January 1 st	M. L. King Memorial Day 3 rd Monday in January
Presidents Day 3 rd Monday in February	Memorial Day last Monday in May
June Teenth June 19 th	Independence Day July 4 th
Labor Day 1 st Monday in September	Columbus Day 2 nd Monday in October
Veteran's Day November 11 th	Thanksgiving Day 4 th Thursday in November
Christmas Day December 25 th	

1.5.3.2 Host Nation Holidays: Work shall not be performed on local Host Nation holidays occurring during the normal workweek unless otherwise directed by the Contracting Officer.

New Year's Day January 1 st	Epiphany January 6 th
Good Friday Varies	Easter Monday Varies
Labor Day May 1 st	Ascension Day Varies
Whit Monday Varies	Corpus Christ Varies
Assumption Day August 15 th	Day of German Unity October 3 rd
All Saints' Day November 1 st	1 st Christmas December 25 th
2 nd Christmas December 26 th	

1.5.4 Operating Hours: The Government facility office hours, facility operating hours, and the Contractor support hour requirements often coincide, however, they may differ. Please refer to the following.

1.5.4.1 Government Facility Office Hours The Government facility office hours are 0730 to 1600 Monday through Friday except U.S. Holidays identified in paragraph 1.5.3.1 above or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings.

1.5.4.2 Government Facility Operating Hours: The Government facility operating hours occur between the hours of 0600 to 1800, Monday through Saturday. The Government facility is closed for operations during the recognized U.S. Holidays identified in paragraph 1.5.3.1 above. The Government facility may close due to local or national emergencies, administrative closings, or similar Government directed facility closings and will be communicated by the Contracting Officer to the Contractor.

1.5.4.3 Contractor Support Hours: See Part 5.2 and 5.3 of the PWS for contractor support hours for the required services. The Contractor shall at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within

this PWS when the Government facility is not closed. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.5.4.3.1 Contractor Work Plan: Reserved.

1.5.5 Training Holidays: USAREUR has historically granted military personnel training holidays as compensation for time that they spent in field training. These are typically combined with regular holiday leave schedules (for example, Christmas half days or day on day off schedules). Training holidays may affect access to military operated facilities. If scheduled work or access to facilities is required, coordination with occupants will be necessary or the work in affected facilities shall be rescheduled after the training holiday. However, announced training holidays or exodus of military personnel may provide the Contractor with an opportunity for unrestricted access to facilities and areas. The Contractor shall take full advantage of such opportunities by planning maintenance or actions that are better accomplished when such areas are vacant.

1.5.6 Place of Performance: The work to be performed under this contract will be performed at Smith, Wetzel and Quartermaster Area in Baumholder as well as at the Waterworks Areas in Hopstädten and Pfeffelbach.

1.6 Security Requirements: The following information is provided on security related matters.

1.6.1 Security Program: Reserved.

1.6.2 Personnel Security Clearance Requirements: Reserved.

1.6.3 Installation Access: Access to U.S. installations and controlled areas is limited to personnel who meet security criteria and are authorized by Host Nation law to work in that country. Failure to submit required information/data and obtain required documentation or clearances in accordance with Army in Europe (AE) Regulation 190-16 (AE Reg 190-16) Installation Access Control or (AE) Regulation 604-1 for Germany specific contracts, will be grounds for denying access to U.S. installations and controlled areas. The Contractor shall ensure that any subcontractors used in performance of this contract complies with these requirements and that all employees, of both the Contractor and any subcontractor utilized by the Contractor, are made aware of and comply with these requirements. Should anything in this paragraph conflict with AE Reg 190-16 or (AE) Regulation 604-1, the regulation takes precedent.

The Contractor shall be aware of and comply with the requirements associated with Installation Access Control. The Government is not liable for any costs associated with performance delays due solely to a firm's failure to comply with Installation Access Control System (IACS) processing requirements.

The Contractor shall return installation passes to the issuing IACS office when the contract is completed or when a Contractor employee no longer requires access.

AE Reg 190-16 (and AE 190-16-G German translation) can be found on the following website: <http://www.aepubs.eur.army.mil/AE-Forms/>

1.6.3.1 In addition, the Contractor shall provide the Contracting Officer, via the COR, an Initial Installation Pass Log within three (3) calendar days after contract award (A.002). The log shall be updated as employees are added or removed. The Updated Installation Pass Log shall be current and available at any time upon request by the Government and submitted to the COR within five (5) days after any changes to the log (A.002).

1.6.3.2 The Contractor shall collect the installation access passes the same day employment of an individual has expired or has been terminated and shall return them to the issuing office within three (3) workdays. (A.002).

1.6.3.3 Upon termination or cancellation of this contract, the Contractor shall collect all outstanding installation access passes and return them to the issuing office within three (3) workdays. (A.002).

1.6.3.4 Common Access Cards (CAC): Reserved.

1.6.4 Background Checks: Army in Europe (AE) Regulation 604-1 provides guidance pertaining to background checks for U.S. and Host Nation Contractors.

1.6.5 Physical Security: The Contractor shall safeguard all Government equipment, information, and property provided for Contractor use. At the close of each work period, Government facilities, equipment, and materials shall be secured IAW the Army Physical Security Program (AR 190-13).

1.6.6 Operations Security (OPSEC) Requirements: Contractor personnel shall adhere to facility security policies and restrictions. The Contractor shall immediately report suspicious activities to security personnel. Government issued access badges shall not be worn outside designated facilities where visible to the general public.

1.7 Key Control: Reserved.

1.8 Post Award Conference/Periodic Progress Meetings: Reserved.

1.9 Contracting Officer's Representative (COR): Refer to Part 2 of this PWS for the definition of a COR. As determined by the Contracting Officer, a COR will be appointed and identified by letter of designation, a copy of which will be provided to the Contractor by the Contracting Officer. The designation letter states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates, or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is not authorized to obligate the Government. If the work is not written in the contract, the COR is not authorized to request new work. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract, perform inspections necessary in connection with contract performance, maintain written and oral communications with the Contractor concerning technical aspects of the contract, issue written interpretations of technical requirements, including Government drawings, designs, specifications, monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies, coordinate availability of Government property, and coordinate site entry of Contractor personnel.

1.10 Key Personnel: The following personnel are considered key personnel by the Government: Primary and Alternate Contractor Point of Contact (POC). The Contractor shall provide a Primary and Alternate Contractor POC who shall be responsible for the performance of the work. The name of this person and an Alternate POC, who shall act for the Contractor when the primary Contractor POC is absent, shall be provided in writing to the Contracting Officer no later than five (5) days after contract award (A.006). The Primary Contractor POC and/or Alternate Contractor POC shall have full authority to act for the Contractor on all contract matters. They must be able to correspond to the COR and KO in the English language.

1.10.1 The contractor is responsible to provide all necessary licenses and permits without any costs for the US Government and to obey all applicable laws, ordinances and regulations related to performance of this service. All licenses and permits must be available at the time of the contract award.

Der Vertragsnehmer ist dafür verantwortlich, ohne zusätzliche Kosten für die Regierung, alle notwendigen Lizenzen und Zulassungen zu beschaffen und alle zutreffenden Gesetze, Verordnungen und Bestimmungen in Zusammenhang mit der Ausführung dieser Dienstleistung zu befolgen. Sämtliche Lizenzen und Zulassungen müssen zum Zeitpunkt der Vertragsvergabe vorhanden sein.

1.11 Identification of Contractor Employees: All Contractor personnel attending meetings, answering Government telephones, and working in other situations where their Contractor status is not obvious to third parties must identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. The Contractor shall ensure that all documents or reports produced by Contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

1.12.1 Reserved.

1.12.2 Contractor Identification Badges: Contractor personnel shall be easily identifiable through the display of badges IAW Contractor Identification (AE Reg. 27-715). The Contractor (to include subcontractors) shall provide each of their employees an easily readable identification badge. The badge must include the employee's name, the contractor's company name, the functional area of assignment, and a recent color photograph of the employee. Companies with U.S. Government contracts will require their employees to wear these badges visibly when performing work at Government workplaces unless this would be impractical because of mission or safety considerations. The Contractor shall collect all ID Badges upon

completion of the contract or termination of employee. A listing of issued ID cards shall be furnished to the Contracting Officer prior to the contract performance date and updated as needed to reflect Contractor personnel changes. (A.007)

1.13 Contractor Travel: Travel cost/mileage/per diem is not charged separately and is included in the overall contract price.

1.14 Other Direct Costs (ODCs): Reserved.

1.15 Data Rights: Reserved.

1.16 Non-Disclosure Requirements: Reserved.

1.17 The use of propaganda violates DoD Commercial Use of Imagery Guidelines stated at <http://www.defenseimagery.mil/products/dodimagery/commercialuse.html>. The Contractor shall not cite any information (e.g., contract information, pictures, locations, etc.) obtained through this contract on any marketing tools to include its company website.

1.18 Non-Disclosure Statements: Reserved.

1.19 Organizational Conflict of Interest (OCI): Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent OCI as defined in FAR Subpart 9.5. The Contractor shall notify the Contracting Officer immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI (A.008). The Contractor's OCI Mitigation Plan will be determined to be acceptable solely at the discretion of the Contracting Officer. In the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.20 Phase In /Phase Out Period: Reserved.

1.21 Safety: Reserved.

1.22 Environmental Compliance: The following provides information on Environmental Compliance.

1.22.1 Environmental Compliance Plan and Program: The contractor shall comply with all applicable environmental protection directives. The contractor shall follow manufacturers' guidelines and professional recommendations for control of humidity, temperature, cleanliness, and materials handling. Upon occurrence of any spills that could enter the storm sewer system or could cause any harmful environmental effects, the contractor shall immediately call the Environmental Branch at Baumholder (telephone DSN 531-3103 or civilian 0611-143-531-3103) or the Government Engineering Technician in charge, and report the incident.

1.23 Required Training: The following provides information on training requirements.

1.23.1 Anti-Terrorism (AT) Level I Training: All Contractor employees, including subcontractor employees, who are employed under the contract, shall complete AT Level I Training within thirty (30) calendar days (A.010) after contract start date or effective date of incorporation of this requirement into the contract, whichever applies, or thirty (30) calendar days after employment of new personnel. Contractor personnel travelling overseas shall complete area of responsibility (AOR) specific AT awareness training for U.S. based Contractor employees and associated subcontractor employees. The Contractor shall submit certificates of completion (A.010) for each affected Contractor employee and subcontractor employee to the COR (or to the Contracting Officer, if a COR is not assigned) within ten (10) calendar days after completion of this training by all employees and subcontractor personnel. AT Level I awareness training is available at <https://jkodirect.jten.mil>. Contractor personnel shall complete refresher training (A.010) every twelve (12) months except AOR specific AT Level I training which shall be completed as required by local AT policies.

If training cannot be conducted on the website, the Contractor shall coordinate with the COR who will contact the local AT Officer at their assigned location for classroom training. Contractor personnel completing training in the classroom will receive a certificate or the training attendance roster signed by the AT Officer. Verification of the training shall be provided to the COR within ten (10) calendar days after completion of the training (A.010).

1.23.2 OPSEC Training: All Contractor employees, including subcontractors, shall complete Level I OPSEC training within thirty (30) calendar days of employment under this contract (A.011). Verification of the training shall be provided to the COR within ten (10) calendar days after completion of the training (A.011). OPSEC Level I training is available at <http://www.cdse.edu/catalog/elearning/GS130.html>. Contractor personnel must complete refresher training every 12 months (A.011). Verification of the training shall be provided to the COR within ten (10) calendar days after completion of the training (A.011).

If training cannot be conducted on the website, the Contractor shall coordinate with the COR, who will contact the local OPSEC Officer at their assigned location for classroom training. Contractor personnel completing training in the classroom will receive a certificate or the training attendance roster signed by the OPSEC Officer. Verification of the training shall be provided to the COR within ten (10) calendar days after completion of the training (A.011).

1.23.3 iWATCH Training: The Contractor and all associated subcontractors shall brief all employees on the local iWATCH program (training standards provided by the requiring activity ATO). This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within thirty (30) calendar days after the contract is awarded and within thirty (30) calendar days after new employees commence contract performance, with the results reported to the COR within thirty (30) calendar days after the contract is awarded and within thirty (30) calendar days after new employees commence contract performance (A.012). Verification of the training shall be provided to the COR within thirty (30) calendar days after completion of the training (A.012). Training slides can be found on the Army War College website: <https://www.armywarcollege.edu/iwatch/>.

1.23.4 Information Assurance (IA) Training Reserved.

1.24 Personally Identifiable Information (PII): Reserved.

1.25 Authorization to Perform Services in Germany

1.25.1 Contractors performing services in the Federal Republic of Germany (FRG) shall comply with German law. The Contractor shall determine whether performance requires registration with German authorities or authorization to do business in Germany and, if so, shall comply with all requirements. Whether or not registration or authorization to do business is required, the Contractor shall determine what documents or authorization its employees and any subcontractor employees must possess to work in Germany. The Contractor shall ensure affirmatively that its employees and subcontractor employees possess such documents or authorizations.

1.25.2 Contractor employees who: (a) are not nationals of Germany or other European Union countries; (b) are not members of the force, the civilian component or their dependents; or c) do not have assimilated status under Articles 71, 72, or 73 of the Supplementary Agreement to the NATO SOFA shall possess work and residence permits.

1.25.3 By acceptance of and performance under this contract, the Contractor affirms that it has complied with the requirements above. Compliance with this requirement and German law is a material contract requirement. Noncompliance by the Contractor or subcontractor at any tier shall be grounds for issuing a negative past performance evaluation and terminating this contract for default.

1.26 Notice to Proceed: Reserved.

1.27 Electromagnetic Compatibility Directive: Reserved.

1.28 Government Property and Services: Reserved,

1.29 Conventional Forces Europe (CFE) Treaty Verification Inspection: Reserved,

PART 2 DEFINITIONS & ACRONYMS

2. Definitions and Acronyms

2.1 Definitions: Although not inclusive of every term used within this PWS, the following provides a list of definitions used throughout this PWS and commonly used in the acquisition field.

Contracting Officer – means a person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR) – As defined in DFARS 202.101, means an individual designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions. Department of Defense Instruction (DoDI) 5000.72, Part II Definitions states the following when defining a COR: “Defined in subpart 202.101 of Reference (f). Any individual delegated responsibilities pursuant to subpart 1.602-2 of Reference (e), regardless of local terminology, must be certified in accordance with this instruction. For example, local terminology can be COR, contracting officer’s technical representative, technical point of contact, technical representative, alternate COR, administrative COR, assistant COR, line item manager, task order manager, quality assurance personnel, quality assurance evaluator, or COR management.” In addition, Army Regulation 70-13, Chapter 2, paragraph 2-2g, states, in part, the following when providing support personnel to assist the COR, “...These other surveillance support personnel may serve as on-site representatives of the COR in performance of actual contract surveillance if they meet all COR requirements and have been appointed by the Contracting Officer as alternate CORs.”

Contractor – means a supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

Contractor-acquired property - means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract, and to which the Government has title.

Day – means, unless otherwise specified, a calendar day.

Defective Service – means service output that does not meet the standard of performance associated with the Performance Work Statement.

Deliverable – means anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

Government-furnished property - means property furnished to the contractor the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes Contractor-acquired property if the Contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract.

Government property - means all property owned or leased by the Government. Government property includes both Government-furnished property and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

Property Administrator - means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

High Level Objective (HLO) – means a key overarching result-based objective for a project necessary to achieve the project’s vision. HLOs are similar to Level 2 in a Work Breakdown Structure. Each HLO may contain several statements to flesh out the areas necessary to meet the objective.

Physical Security – means that part of security concerned with physical measures designed to safeguard personnel; to prevent unauthorized access to equipment, installations, material, and documents; and to safeguard against espionage, sabotage, damage, and theft.

Quality Assurance – (or Government contract quality assurance) means the various functions, including, inspection, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

Quality Assurance Surveillance Plan (QASP) – means the key Government-developed surveillance process document, and is applied to Performance-Based Service Contracting (PBSC). The QASP is used for managing Contractor performance assessment by ensuring that systematic quality assurance methods validate that Contractor quality control efforts are timely, effective, and are delivering the results specified in the contract or task order. The QASP directly corresponds to the performance objectives and standards (i.e., quality, quantity, timeliness) specified in the Performance Work Statement (PWS). It provides specific details on how the Government will survey, observe, test, sample, evaluate, and document Contractor performance results to determine if the Contractor has met the required standards for each objective in the PWS. The QASP, with very few if any exceptions, is an internal to Government document.

Quality Control – means all necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

Statement – means the specific results-based activities required to satisfy HLOs. A statement contains a result, the context of the statement, and the required action(s). Statements focus on “what” is to be accomplished; however they are not prescriptive in describing “how” the outcome is to be achieved. Each HLO may have several statements to flesh out the areas necessary to meet the objective. Statements are similar to Level 3 in a Work Breakdown Structure.

Subcontractor – means one that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

Work Day - The number of hours per day the Contractor provides services in accordance with the contract.

Work Week - Monday through Friday, unless otherwise specified.

2.2 Acronyms: Although not inclusive of every term used within this PWS, the following provides a list of acronyms used throughout this PWS or commonly used in the acquisition field.

ACOR	Alternate Contracting Officer's Representative
AE	Army in Europe
AFARS	Army Federal Acquisition Regulation Supplement
AHA	Activity Hazard Analysis
AOR	Area of Responsibility
AR	Army Regulation
AT	Anti-terrorism
ATCTS	Army Training Certification Tracking System
CAC	Common Access Card
CCE	Contracting Center of Excellence
CFE	Conventional Forces Europe
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer's Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DoD	Department of Defense

FAR	Federal Acquisition Regulation
FRG	Federal Republic of Germany
GFP	Government Furnished Property
HLO	High Level Objective
HIPAA	Health Insurance Portability and Accountability Act of 1996
IA	Information Awareness
IAC	Installation Access Control
IACO	Installation Access Control Office
ID	Identification
IGCE	Independent Government Cost Estimate
IT	Information Technology
JTR	Joint Travel Regulation
JPAS	Joint Personnel Adjudication System
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
OPSEC	Operations Security
PA	Property Administrator
PII	Personally Identifiable Information
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
RA	Requiring Activity
RCO	Regional Contracting Office
SIGE	Safety and Health Protection Plan
TE	Technical Exhibit
USAREUR	U.S. Army Europe
UOM	Unit of Measure

PART 3
GOVERNMENT PROPERTY (GP) AND SERVICES

3. Government Property and Services

3.1 Services: Reserved.

3.2 Facilities: Reserved.

3.3 Utilities: The Government will provide water and electrical power at no cost for the contractor's use in performance of tasks outlined in this PWS. The Contractor shall instruct employees in utilities conservation practices. The contractor shall be responsible for operating under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount to accomplish cleaning vehicles and equipment.

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. Contractor Furnished Property and Services

4.1 General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2 Secret Facility Clearance: Reserved.

4.3 Materials: Reserved.

4.4 Vehicles and Equipment: All Contractor provided vehicles and equipment shall have the company name prominently displayed on both sides of the vehicle or equipment and present a neat, professional appearance. Contractor's vehicles and equipment used in the performance of this contract shall meet all local and Host Nation traffic, safety, and environmental requirements. Vehicles and equipment found to be unsafe shall be removed from the installation and replaced.

4.5 Background Checks: The Contractor shall provide Background Checks in accordance with this PWS and as determined by the Government.

PART 5 SPECIFIC TASKS

In the event of a disagreement between the English text and the courtesy translation of tasks described below the English text shall govern.

Im Falle einer Unstimmigkeit zwischen dem englischen Text und der Gefälligkeitsübersetzung der nachfolgend beschriebenen Leistungen ist der englische Text maßgebend.

5.1 Basic Services: The Contractor shall provide all personnel, equipment, devices, supervisions as well as other items and performance being required to perform services listed in performance work statement.

Der Auftragnehmer hat jegliches Personal, Ausrüstung, Geräte, Aufsicht sowie andere Gegenstände und Leistungen bereitzustellen, welche für die Ausführung der in dieser Arbeitsbeschreibung aufgeführten Dienstleistungen notwendig sind.

5.2. Recurring Services: The contractor shall provide pick-up, transportation and handling services for waste food at least three (3) times a week on a regular basis, whereby a minimum of one hundred and fifty-six (156) pick-ups per year shall be performed. The various pick-up points are listed in the Attachment 1/ Exhibit B - Pick-up Schedule and Building List.

The pick-ups shall take place during the following times and under consideration of customer opening hours:

Monday to Friday: 5.00 a.m. to 8:00 p.m

Saturday: 5.00 a.m. to 4:00 p.m.

If the collection day falls on a US or German holiday, an alternate collection day must be coordinated with the COR or authorized DPW personnel.

Der Auftragnehmer hat Abholung, Transport und Verwertung der Speiseabfälle mindestens dreimal wöchentlich bereitzustellen, wobei mindestens einhundertsechsfünfzig (156) Abfahrten pro Jahr durchzuführen sind. Die einzelnen Abholstellen sind der beigelegten Anlage 1/ Technischer Anhang B – Abfuhr- und Gebäudeliste zu entnehmen.

Die Abholungen sollen während folgender Zeiten und unter Berücksichtigung von Öffnungszeiten der Abholstationen erfolgen:

Montag bis Freitag: 05.00 bis 20.00 Uhr

Samstags: 05.00 bis 16.00 Uhr

Fällt der Abfuhrtag auf einen amerikanischen oder deutschen Feiertag, so ist mit dem COR oder befähigten DPW Mitarbeiter ein anderer Abfuhrtag als Ersatz festzulegen.

5.2.1 All required collecting containers shall be provided by the Contractor. The containers must be moveable and be equipped with a well-sealing lid. On collecting (replacement of full against empty collecting containers) only absolutely functional and properly sanitary containers may be placed. For this, containers shall be cleaned inside and outside with water, minimum 70°C hot by high pressure cleaning method.

Alle benötigten Sammelbehälter sind vom Auftragnehmer bereitzustellen. Die Behälter müssen fahrbar und mit einem dichtschießenden Deckel ausgestattet sein. Bei Abholung (Tausch von vollen gegen leere Sammelbehälter) dürfen nur Behälter angeliefert werden, die sich in einem hygienisch einwandfreiem Zustand befinden und absolut funktionsfähig sind. Hierzu müssen die Behälter innen und außen mit mindestens 70°C heißem Wasser im Hochdruckreinigungsverfahren gesäubert worden sein.

5.2.2 As collecting containers cannot be filled completely, only 200 liters may be invoiced if containers of a capacity of 240 liters are provided and only 100 liters may be invoiced if containers of a capacity of 120 liters are provided. Accompanying documents for picked-up quantities, with obligation to present evidence, must be submitted together with the invoices. Costs accruing shall be separately listed per building.

Da die Sammelbehälter nicht komplett gefüllt werden können dürfen bei der Bereitstellung von 240 l Behältern lediglich 200 l und bei 120 l Behältern nur 100 l in Rechnung gestellt werden. Entsprechende Nachweise über die abgefahrenen Mengen müssen mit den Rechnungen eingereicht werden. Die anfallenden Kosten sind pro Gebäude aufzuführen.

5.2.3 The quantities stated in the contractual positions are maximum quantities that will not be exceeded. The Contractor must inform the Contracting Officers Representative (COR) immediately when 80% of a maximum quantity has been reached. The Government is no way obligated to comply with the estimated maximum quantity.

Die in den Vertragspositionen angeführten Mengen sind Maximummengen, die nicht überschritten werden dürfen. Der Vertragsnehmer muss umgehend den Vertreter des Vertragsoffiziers (COR) informieren, sobald 80% der Maximummenge erreicht werden. Der Auftraggeber ist in keiner Weise verpflichtet, die geschätzten Maximummengen einzuhalten.

5.3 On Demand Services: On-Demand Services for bio waste removal and disposal are not scheduled and are performed on an on-call basis. Three (3) service calls are estimated for one 12 month performance period. The COR or authorized DPW personnel will inform the contractor if bio waste removal services are required and a date for the service needs to be scheduled. The scheduled service date shall be within a timeframe fifteen (15) working days after the contractor was contacted by the Government.

Der Abruf-Service für Bioabfälle ist nicht terminlich eingeplant und sollen auf Basis einer Terminarbeit durchgeführt werden. Pro Vertragsjahr sind drei (3) Einsätze veranschlagt. Der COR oder ein anderer befähigter DPW Mitarbeiter informieren den Auftragnehmer, wenn Bioabfall beseitigung erforderlich ist und ein Termin vereinbart werden muss. Der Termin muss innerhalb eines Zeitrahmens von 15 Arbeitstagen nach Kontaktaufnahme mit dem Auftragnehmer durch die Regierung liegen.

5.3.1 The service includes the delivery of containers, loading of material, pickup of containers, transportation, and disposal of the bio waste. Scoop loader or truck with crane are recommended equipment to load bio waste into the containers. The various pick-up points and the different types of waste are listed in Attachment 2/Technical Exhibit B.

Die Leistung beinhaltet das Anliefern von Containern, das Aufladen des Materials, den Abtransport der Container und die Entsorgung des Bioabfalles. Ein Radlader oder LKW-Kran, um die betreffenden Abfälle in die Container zu laden sind empfohlen. Die einzelnen Abholstellen sowie die verschiedenen Abfallarten sind der Anlage 2/Technischer Anhang B zu entnehmen.

5.3.2 Bio waste disposal services shall be performed during regular DPW working hours, Monday thru Friday between 07:30 a.m. and 04:00 p.m.

Die Bioabfallentsorgung erfolgt während der regulären DPW-Arbeitszeiten, Montags bis Freitags von 7:30 Uhr bis 16:00 Uhr.

5.4 Task Heading: The Contractor shall perform the disposal of waste food within Baumholder Military Community considering the following supplementary conditions..

Der Auftragnehmer hat die Entsorgung von Speiseabfällen innerhalb der Militärgemeinde Baumholder unter Beachtung folgender, zusätzlicher Bedingungen durchzuführen.

5.4.1 Disposal of waste and its removal must be performed in accordance with currently applicable German laws and regulations (Waste Management Act, Commercial Waste Ordinance, Bio Waste Ordinance and Pendant State Laws).

Die Entsorgung der Abfälle sowie deren Beseitigung hat in Übereinstimmung mit den neuesten deutschen Gesetzen und Bestimmungen (Kreislaufwirtschaftsgesetz, Gewerbeabfallverordnung, Bioabfallverordnung, entsprechende Landesgesetze) zu erfolgen.

5.4.2 The contractor shall report all damage caused by the contractor. If there is a safety hazard, the necessary security measures must be taken by him immediately. Required protective and safety measures must meet the requirements of the accident prevention regulations and authority regulations. Signs shall be lettered in German and English.

Der Auftragnehmer ist verpflichtet sämtliche durch ihn verursachten Beschädigungen zu melden. Bei Unfallgefahr sind die notwendigen Sicherungsmaßnahmen von ihm sofort zu veranlassen. Erforderliche Schutz- und Sicherheitsmaßnahmen müssen den Unfallverhütungsvorschriften und behördlichen Bestimmungen entsprechen. Alle Beschilderung ist in deutscher und englischer Sprache auszuführen.

5.4.3 Accompanying documents for picked-up quantities must be submitted together with the invoices for approval by the Contracting Officer's Representative.

Entsprechende Nachweise über die abgefahrenen Mengen müssen dem „Contracting Officer's Representative“ mit den Rechnungen uebergeben werden.

5.4.4 No liability will be accepted for any damage to the contractor's property caused by foreign matter, e.g. cans, stones, wood etc. contained inside the bio waste, despite careful controls during collection.

Es wird keinerlei Haftung für Schäden am Eigentum des Unternehmers übernommen, die bedingt durch Fremdkörper im Abfall verursacht wurden, wie z.B. Dosen, Steine, Holz etc., die trotz sorgfältiger Kontrolle während der Sammlung aufgenommen wurden.

5.5 Meetings, Conferences, and Briefings: The Contractor shall attend, participate in, and furnish input to scheduled and unscheduled meetings, conferences, and briefings that relate to the functions and services herein as required by the Government to provide effective communication and impart necessary information. The Project Manager or designated representative shall attend meetings as requested by the Government. Meeting attendees shall at times include Contractor managerial, supervisory, and other personnel knowledgeable of the subject matter. Meetings may start or end outside of regular duty hours.

5.6. Service Contract Reporting: Reserved.

PART 6

APPLICABLE PUBLICATIONS

6. Applicable Publications (Current Editions): The following publications, manuals, regulations, etc. are mentioned in this PWS and are listed below.

The following is a list of applicable publications. Copies of the German Standards and Regulations will not be furnished by the Government.

- 6.1.1 Department Of Defense Contract Security Classification Specification (DD Form 254)
- 6.1.2 Department of Defense Security Agreement (DD Form 441)
- 6.1.3 National Industrial Security Program Operating Manual (DoD 5220.22-M)
- 6.1.4 Installation Access Control (AE Reg 190-16)
- 6.1.5 The Army Physical Security Program (AR 190-13)
- 6.1.6 Contractor Identification (AE Reg 27-715)
- 6.1.7 U.S. Army Corps of Engineers Safety and Health Requirements Manual (EM 385-1-1)
- 6.1.8 Information Assurance Workforce Improvement Program (DoD 8570-M)
- 6.1.9 Information Assurance Training Certification and Workforce Management Directive (DoDD 8570.01)
- 6.1.10 Information Assurance (AR 25-2)
- 6.1.11 Electromagnetic Compatibility Directive (2004/108/EC)
- 6.1.12 Policies and Procedures for Property Accountability (AR 735-5)
- 6.1.13 Joint Travel Regulation (JTR)
- 6.1.14 ArbSchG - Labor Protection Law
- 6.1.15 PSA-BV - Regulation on Safety and Occupational Health for using PPE at work
- 6.1.16 8 GUV-V-A1-UW - Principles of Accident Prevention
- 6.1.17 STVO - Road Traffic Regulation
- 6.1.18 VOB, Teil C - German Technical Regulation for Construction Work
- 6.1.19 DIN German Industrial Standard
- 6.1.20 Safety Codes of the German Trade Association
- 6.1.21 DIN 18299 - Site Equipment
- 6.1.22 DGUV – German Social Accident Insurance
- 6.1.23 KrWG - Waste Management Act
- 6.1.24 BioAfV – Biowaste Ordinance
- 6.1.25 TRGS Technical rules for hazardous material

PART 7
ATTACHMENT AND TECHNICAL EXHIBIT LISTING

7. Attachment and Technical Exhibit List

- | | |
|---------------------------------------|---|
| 7.1 <u>Technical Exhibit A</u> | Performance Requirements Summary |
| 7.2 <u>Technical Exhibit B</u> | Deliverables Schedule |
| 7.3 <u>Attachment 1</u> | List of Pick-up Points and Days |
| 7.4 <u>Attachment 2</u> | List of Pick-up Points and Types of BIO - Waste |

TECHNICAL EXHIBIT A
Performance Requirements Summary (PRS)

PERFORMANCE OBJECTIVE	STANDARD	PERFORMANCE THRESHOLD ACCEPTABLE QUALITY LEVELS (AQLs)	METHOD OF SURVEILLANCE
5.2 The contractor shall perform the Disposal of waste food.	The contractor shall provide pick-up, transportation and handling services for waste food at least three (3) times a week on a regular basis	100 % Compliance	100% Random Inspection
5.2.1 Collecting Containers	All required collecting containers shall be provided by the Contractor. The containers must be moveable and be equipped with a well-sealing lid. On collecting (replacement of full against empty collecting containers) only absolutely functional and properly sanitary containers may be placed	100 % Compliance	100% Inspection
5.3 Disposal of Bio Waste	The scheduled service date shall be within a timeframe fifteen 15 working days after the contractor was contacted by the Government	100 % Compliance	100% Inspection
5.3.1 Service	The service includes the delivery of containers, loading of material, pickup of containers, transportation, and disposal of the bio waste. Scoop loader or truck with crane are recommended equipment to load bio waste into the containers	100 % Compliance	Random Inspection
5.4.1 Disposal of waste	Disposal of waste and its removal must be performed in accordance with currently applicable German laws and regulations (Waste Management Act, Commercial Waste Ordinance, Bio Waste Ordinance and Pendant State Laws).	100 % Compliance	100% Inspection

5.4.2 The contractor shall report all damage	The contractor shall report all damage caused by the contractor. If there is a safety hazard, the necessary security measures must be taken by him immediately. Required protective and safety measures must meet the requirements of the accident prevention regulations and authority regulations. Signs shall be lettered in German and English.	100 % Compliance	100% Inspection
5.4.3 Documents for picked-up quantities	Accompanying documents for picked-up quantities must be submitted together with the invoices for approval by the Contracting Officer's Representative.	100 % Compliance	100% Inspection

TECHNICAL EXHIBIT B

DELIVERABLES SCHEDULE

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
A.001 Quality Control Plan (para 1.5.1) • Changes to the accepted QCP	• NLT 10 calendar days after contract award • NLT 2 calendar days After changes occur	1 Copy for the official file	Approved Contractor Format	Technical Representative / KO
A.002 Installation Access (para 1.6.3) • Changes to the access Log	• NLT 3 days after contract award • NLT 5 days after changes • NLT 3 days collect the installation access • NLT 3 days after contract cancellation	1 Copy for the official file	Approved Contractor Format	Technical Representative
A.006 Key Personnel (para 1.10) • Primary and Alternate Contractor Point of Contact	• NLT 5 days after contract award	1 Copy for the official file	Approved Contractor Format	Technical Representative
A.007 Contractor Identification Badges: (para 1.12.2) • Issued ID cards	• prior to the contract performance	1 Copy for the official file	Approved Contractor Format	Technical Representative/ KO
A.008 Organizational Conflict of Interest (para 1.19) • submit to avoid or mitigate any such OCI	• NLT 1 day after OCI	1 Copy for the official file	Approved Format	Technical Representative
A.010 Anti-Terrorism Training (para 1.23.1) • employees Training • submit certificates	• NLT 30 calendar days after contract start date • NLT 10 days after training completion	1 Copy for the official file	Approved Format	Technical Representative
A.011 OPSEC Training (para 1.23.2) • complete Training • provide completion • refresh training	• NLT 30 days of employment • NLT 10 days after Completion • refresh every 12 month	1 Copy for the official file	Approved Contractor Format	Technical Representative
A.012 iWatch Training (para 1.23.3) • report results	• NLT 30 days after contract award	1 Copy for the official file	Approved Contractor Format	Technical Representative
NOTE: Meeting minutes will be recorded by the Government, and distributed to the appropriate individuals following any meeting. Should there be disagreement with the minutes, the Contractor will provide a written notification identifying areas of non-concurrence for joint resolution.				

TECHNICAL EXHIBIT B
ATTACHMENT 1
List of Pick-up Points and Days / Liste der Abholstellen und Tage

Bldg. No./ Geb. Nr.	Usage / Nutzung	Number and Container Size / Anzahl und Behältergrösse	Pick-up rate / Abfuhrmodus	POC / Kontaktperson
8033	Smith Elementary School	6 x 120 Ltr	Mon-Wed-Fri / Mo-Mi-Frei	
8085	RCC (Rheinlander Club)	4 x 120	Mon-Wed-Fri / Mo-Mi-Frei	
8099	CDC Smith Kaserne	1 x 120	Mon-Wed-Fri / Mo-Mi-Frei	
8105	Bowling Center	2 x 120	Mon-Wed-Fri / Mo-Mi-Frei	
8125	Popeye's	2 x 240	Mon-Wed-Fri / Mo-Mi-Frei	
8146	DPW Kantine	1 x 120	Mon-Wed-Fri / Mo-Mi-Frei	
8167	Rod & Gun Shooters	2 x 120	Mon-Wed-Fri / Mo-Mi-Frei	
8219	Burger King	2 x 240	Mon-Wed-Fri / Mo-Mi-Frei	
8251	Shopette / Gas Station	2 x 240	As requested / bei Bedarf	
8311	Dining Facility	10 x 240	Mon-Wed-Fri / Mo-Mi-Frei	
8401	PX SUBWAY Shop	2 x 240	Mon-Wed-Fri / Mo-Mi-Frei	
8544	Dining Facility	10 x 240	Mon-Wed-Fri / Mo-Mi-Frei	
8575	Commissary	20 x 240	Mon-Wed-Fri / Mo-Mi-Frei	
8713	TISA Warehouse	5 x 240	As requested / bei Bedarf	
8801	High School	5 x 240	Mon-Wed-Fri / Mo-Mi-Frei	
8862	CDC Wetzel Kaserne	2 x 120	Mon-Wed-Fri / Mo-Mi-Frei	
8882	Wetzel Elementary School	4 x 240	Mon-Wed-Fri / Mo-Mi-Frei	

**TECHNICAL EXHIBIT B
ATTACHMENT 2**

List of Pick-up Points and Types of Bio Waste / Liste der Abholstellen und Abfallarten

Pick-up Points	Unit	Qty
Smith Barracks Baumholder, behind/below Bldg. # 8153-8154	cbm	3,000
Estimated Quantity per Year	cbm	3,000

Type of Waste	Abfallart
Branches from public outdoor facilities	Grünabfälle aus öffentlichen Anlagen
Grass clippings	Rasenschnitt
Clippings/cuttings from road embankments	Mähgut von Strassenrändern
Prunery	Baum-und Gehölzschnitt
Leaves	Laub
Plant residues	Pflanzenreste
Christmas trees	Weihnachtsbäume
Wood chips	Hobelspäne
Sawdust	Sägemehl
Roots	Baumwurzeln